

Jethu Ram vs Bhimu Through Her Lrs on 28 May, 2019

Author: Tarlok Singh Chauhan

Bench: Tarlok Singh Chauhan

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

R.S.A. No. 640/2007

Decided on: 28.5.2019

Jethu Ram

...Appellant

Versus

Bhimu through her LRs

....Respondents

Coram

The Hon'ble Mr. Justice Tarlok Singh Chauhan, Judge.

Whether approved for reporting ?1 No

For the appellant:

Mr. Ajay Kumar, Senior Advocate with
Mr. Dheeraj K. Vashisht, Advocate.

For the respondents: None.

Tarlok Singh Chauhan, Judge

The plaintiff is the appellant, who aggrieved by the

judgments and decrees concurrently passed by the learned

courts below, has filed the instant appeal.

The parties shall be referred to as the "plaintiff" and "defendant".

2 Briefly stated the facts leading to filing of the present appeal are that late Bihu, husband of the defendant,

on 28.6.1986 made a grant of the suit land/property in

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Whether reporters of Local Papers may be allowed to see the Judgment ?Yes

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favour of the defendant on account of maintenance as finds recorded in Cr. Revision No.8-M/85. This grant was upheld

even by this Court in RSA No. 266/2004 and thereafter the

defendant obtained the possession of the suit property in

Execution Petition No.1-X/05, decided on 27.5.2005. It was

further averred that the grant made by late Bihu to the

defendant was conditional to the effect that the same was till

the life time of the defendant and she would not be able to transfer the same by way of sale, will, gift or in any other manner during her life time. Late Bihu made a registered will in favour of the plaintiff on 27.8.1982 vide which he was entitled to entire estate of Bihu and also as an adopted son,

which fact was also mentioned in the will. Subsequently

when the possession of the suit property was handed over to

the defendant on 24.5.2005 at the spot, the plaintiff requested that the entry, as stated in the compromise before

the learned Additional Sessions Judge, Mandi dated 28.6.1986, be incorporated in the revenue papers, but the same was not done. Hence, the suit.

3 The suit was resisted and contested by the defendant by filing written statement, wherein preliminary objections regarding maintainability, cause of action,

estoppel, valuation and locus standi were taken. On merits, it was denied that the grant of the suit land/property made by

late Bhiu to defendant was conditional to the effect that the

same was during her life time. It was further averred that

there was no such condition ever imposed or agreed by her in the compromise executed before the learned Additional District Judge, Mandi on 18.6.1986. She claimed herself to be an individual

owner of the suit land/property having every right to enjoy and develop the same as she wished. The plaintiff had no right, title or interest over the suit land/property. It was further contended that neither the plaintiff had right to get executed a registered will in his name of the suit land/property neither he was the adopted son of late

Bihu.

4 The plaintiff filed replication to the written statement, wherein averments made in the written statement

were denied and the averments made in the plaint were re-affirmed and re-asserted.

5 On the pleadings of the parties, the learned trial court on 5.11.2005 framed the following issues:-

1. Whether the plaintiff is entitled for the decree of declaration that the defendant is limited owner in the suit land ? OPP

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2. Whether the plaintiff is entitled for the relief of permanent prohibitory injunction against the defendant? OPP

3. Whether the plaintiff is entitled for the

reversionary rights after the death of defendant?
OPD

4. Whether the present suit is not maintainable?
OPD
5. Whether the plaintiff has no locus standi to file

the present suit? OPD

6. Whether the plaintiff has no enforceable cause of action? OPD.

7. Whether the plaintiff has estopped to file the present suit by his act, conduct and deeds?
OPD.

8. Whether the suit has not been properly valued

for the purpose of court fee and jurisdiction? OPD

9. Relief.

6 After recording the evidence and evaluating the

same, the learned trial court vide judgment and decree dated

13.6.2006 dismissed the suit filed by the plaintiff with costs by concluding that the suit land/property acquired by the defendant under Section 14 (1) of the Hindu Succession Act (for short, the "Act") in lieu of maintenance and the same was possessed by her on the date of commencement of the Act, which had ripened into full ownership and therefore, the

plaintiff was not entitled for the decree of declaration to the effect that after the death of defendant, he was entitled to

succeed to the suit land/property. The appeal against the

same was also dismissed by the learned first appellate court

vide judgment and decree dated 8.10.2007 constraining the plaintiff to file the instant appeal.

7 On 21.5.2008, the appeal was admitted on

following substantial questions of law:

1. Whether the findings of the learned first appellate court and the learned trial court are a result of complete misreading of pleadings, evidence and the law as applicable to the facts of the case and particularly document, Exhibit PW1/C, PW1/H, PW1/J

and PW1/K and as such palpably erroneous and illegal and if so to what effect?

2. Whether the property given to the defendant in lieu

Cr.P.C. with the condition that she would be limited owner till her life time could be considered as her

absolute property or the same is covered by sub-section (2) of Section 14 of the Hindu Succession Act, 1956?

3. Whether the findings of the Courts below to the effect that the suit property given to the defendant in the proceedings under Section 125 Cr.P.C. for her life time is covered by Section 14(1) of the Hindu

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Succession Act, 1956 are sustainable in the face of oral and documentary evidence on the case file?
8 I have heard the learned counsel for the appellant

and have also gone through the records of the case carefully.

SUBSTANTIAL QUESTIONS OF LAW NO. 1 to 3:

9 Since all these substantial questions of law are intrinsically interlinked and interconnected, therefore, they

are taken up together for consideration and are being answered by common reasoning.

10 The moot question that arises for consideration is that as to whether the defendant had only a life interest in the suit property or the same had blossomed into a complete ownership in terms of the provisions of Act.

11 Section 14 of the Act reads thus:-

"14. Property of a female Hindu to be her absolute

property.--

(1) Any property possessed by a female Hindu,

whether acquired before or after the commencement of this Act, shall be held by her as full owner thereof and not as a limited owner. Explanation.--In this sub-section, "property" includes both movable and immovable property acquired by a female Hindu by inheritance or devise, or at a partition, or in lieu of maintenance or arrears of maintenance, or by gift from any person, whether a relative or not, before, at or after her marriage, or by her own skill or exertion,

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or by purchase or by prescription, or in any other manner whatsoever, and also any such property held by her as stridhana immediately before the

commencement of this Act.

(2) Nothing contained in sub-section (1) shall apply to any property acquired by way of gift or under a will

or any other instrument or under a decree or order of a civil court or under an award where the terms of the gift, will or other instrument or the decree, order

or award prescribe a restricted estate in such property."

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Though there is plethora of law on the subject, however, at this stage, I need only refer to a recent judgment of the Hon'ble Supreme Court in Jupudy Pardha Sarathy

Vs. Pentapati Rama Krishna and others (2016) 2 SCC 56, wherein after discussing the entire law on the subject it has

been held that property given to Hindu woman in lieu of her

pre-existing right of maintenance, even if by Will creating

only life interest, the same would get transformed into an absolute right by operation of Section 14(1). This is because under the Hindu law, the husband has got a personal obligation to maintain his wife and if he is possessed properties, then his wife is entitled to a right to be maintained out of such properties. This claim of the Hindu

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woman is not a mere formality which is to be exercised as a matter of concession, grace or gratis but is a valuable,

spiritual and moral right. It is apt to reproduce the relevant

observations, which read thus:-

"12. Mr. K.V. Viswanathan, learned senior advocate appearing for the appellant, confined his argument to the question of law as to whether the High Court erred in law in holding that Section 14(1) of the Act

will be attracted and the widow Veeraghavamma have acquired absolute interest in the properties.

Learned counsel made the following submissions:-

12.1 Section 14(1) cannot be interpreted to mean that each and every Will granting a limited/life interest in a property to a widow is

deemed/assumed to be in lieu of her maintenance. If the testator in his Will specifically provides that he is granting only life interest in the property to his

widow, his right to limit his widows right in the

property is recognized by Section 14(2) of the Hindu Succession Act, 1956. Further, the testators right to

dispose off his property by will or other testamentary disposition is recognized by Section 30 of the Hindu Succession Act, 1956. Therefore, Section 14(1) of the Hindu Succession Act, 1956 cannot be interpreted in a manner that renders Section 14(2) and Section 30 of the same Act otiose.

12.2 In Mst. Karmi vs. Amru & Ors. (1972)4 SCC 86, a 3-Judge Bench of this Court held to the effect that a widow who succeeded to the property of her

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deceased husband on the strength of his will cannot claim any rights in the property other than those conferred by the will.. The life estate given to her

under the Will cannot become an absolute estate

under the provisions of the Hindu Succession Act.
12.3 In V. Tulsamma vs. Sesha Reddy (1977) 3 SCC

99, this Court clarified the difference between sub-section (1) and (2) of Section 14, thereby restricting the right of a testator to grant a limited life interest in

a property to his wife. Learned counsel referred para 62 of the judgment in Tulsamma case.

12.4 V. Tulsammas case involved a compromise

decree arising out of decree for maintenance

obtained by the widow against her husband's brother in a case of intestate succession. It did not deal with situations of testamentary succession.

Therefore, strictly on facts, it may not be applicable to cases of testamentary succession. However, in

terms of law declared therein, a doubt may arise whether Section 14(1) may apply to every instance of

a Will granting a limited/life interest in a property to the widow on the ground that the widow has a pre-

existing right of maintenance.

12.5 This doubt was resolved by the Supreme Court in Sadhu Singh vs. Gurdwara Sahib Narike, (2006) 8 SCC 75, where it was held at paras 13 and 14 that the right under section 30 of the Hindu Succession Act, 1956 cannot be rendered otiose by a wide interpretation of Section 14(1) and that these two provisions have to be balanced.

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12.6 The above view has been subsequently affirmed by this Court. In Sharad Subramanayan vs. Soumi Mazumdar & Ors. (2006) 8 SCC 91 (at para

20), this Court upheld the contention of the learned

counsel for the respondents therein that there was no proposition of law that all dispositions of property

made to a female Hindu were necessarily in recognition of her right to maintenance whether under the Shastric Hindu law or under the statutory

law.

12.7 Learned counsel referred para 14 in the case of Shivdev Kaur vs. R.S. Grewal.

12.8 The position of law as recorded in Sadhu

Singhs case and followed subsequently, therefore, appears to be that the question as to whether Section 14(1) applies to a Will granting life interest to a

widow hinges on the finding by the Court that the grant was in lieu of maintenance. This leads to the

second arguments.

13. Mr. Viswanathan, learned senior counsel.

submitted the fact that the life interest in property granted to the widow by way of a Will was actually

in lieu of her maintenance needs to be specifically pleaded, proved and decided by the Court based on examination of evidence and material on record. Further, referring paragraph nos. 17, 22 and 24 of the decision in G. Rama vs. TG Seshagiri Rao, (2008) 12 SCC 392, learned counsel submitted that issues are required to be framed and evidence has to be led

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to specifically show that the Will granted interest in property in lieu of maintenance.

14. It is well settled that under the Hindu Law, the

husband has got a personal obligation to maintain

his wife and if he is possessed of properties then his wife is entitled to a right to be maintained out of such

properties. It is equally well settled that the claim of Hindu widow to be maintained is not a mere formality which is to be exercised as a matter of

concession, grace or gratis but is a valuable, spiritual and moral right. From the judicial pronouncement, the right of a widow to be maintained, although does

not create a charge on the property of her husband

but certainly the widow can enforce her right by moving the Court and for passing a decree for maintenance by creating a charge.

15. The Hindu Married Women's Right to Separate, Maintenance and Residence Act, 1946 was enacted

giving statutory recognition of such right and, therefore, there can be no doubt that the right to

maintenance is a pre-existing right.

16. In V. Tulsamma and others vs. Sesha Reddy,

AIR 1977 SC 1944, three Judges Bench of this Court has elaborately considered the right of a Hindu woman to maintenance which is a pre-existing right. My Lord Justice Fazal Ali writing the judgment firstly

observed: (SCC pp. 113-14, para 20)

"20. Thus on a careful consideration and detailed analysis of the authorities mentioned above and the Shastric Hindu law

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on the subject, the following propositions emerge with respect to the incidents and characteristics of a Hindu woman's right to

maintenance:

'(1) that a Hindu woman's right to maintenance is a personal obligation so far

as the husband is concerned, and it is his duty to maintain her even if he has no property. If the husband has property then

the right of the widow to maintenance becomes an equitable charge on his property and any person who succeeds to the

property carries with it the legal obligation to

maintain the widow;

(2) though the widows right to maintenance is not a right, to property but it is

undoubtedly a pre-existing right in property
i.e. it is a jus ad rem not jus in rem and it can

be enforced by the widow who can get a
charge created for her maintenance on the

property either by an agreement or by
obtaining a decree from the civil court;

(3) that the right of maintenance is a matter
of moment and is of such importance that
even if the joint property is sold and the
purchaser has notice of the widows right to
maintenance, the purchaser is legally bound
to provide for her maintenance;

(4) that the right to maintenance is
undoubtedly a pre-existing right which

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existed in the Hindu law long before the
passing of the Act of 1937 or the Act of 1946,
and is, therefore, a pre-existing right;

(5) that the right to maintenance flows from

the social and temporal relationship between
the husband and the wife by virtue of which

the wife becomes a sort of co-owner in the property of her husband, though her co-ownership is of a subordinate nature; and

(6) that where a Hindu widow is in possession of the property of her husband, she is entitled to retain the possession in lieu of her maintenance unless the person who succeeds to the property or purchases the same is in a position to make due arrangements for her maintenance.

17. Interpreting the provisions of Section 14 of the Hindu Succession Act, their Lordships observed: (V.

Tulasamma case, SCC pp. 120-21, para 30)

"30. In the light of the above decisions of this

Court the following principles appear to be clear:

- (1) that the provisions of Section 14 of the 1956 Act must be liberally construed in order to advance the object of the Act which is to enlarge the limited interest possessed by a Hindu widow which was in consonance with the changing temper of the times;
- (2) it is manifestly clear that sub-section (2) of Section 14 does not refer to any transfer

which merely recognises a pre-existing right without creating or conferring a new title on the widow. This was clearly held by this

Court in Badri Pershad case.

(3) that the Act of 1956 has made revolutionary and far-reaching changes in

the Hindu society and every attempt should be made to carry out the spirit of the Act which has undoubtedly supplied a long felt

need and tried to do away with the invidious distinction between a Hindu male and female in matters of intestate succession;
r (4) that sub-section (2) of Section 14 is merely a proviso to sub- section (1) of Section 14 and has to be interpreted as a proviso and not in a manner so as to destroy the effect of the

main provision.
18. Lastly, His Lordship after elaborate

consideration of the law and different authorities

came to the following conclusions:- (V. Tulsamma

case, SCC pp. 135-36, para 61)

"61. We would now like to summarise the

legal conclusions which we have reached after an exhaustive consideration of the authorities mentioned above on the question of law involved in this appeal as to the interpretation of Sections 14(1) and (2) of the Act of 1956. These conclusions may be stated thus:

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'(1) The Hindu female's right to maintenance is not an empty formality or an illusory claim being conceded as a matter of grace and

generosity, but is a tangible right against

property which flows from the spiritual relationship between the husband and the

wife and is recognised and enjoined by pure Shastric Hindu law and has been strongly stressed even by the earlier Hindu jurists

starting from Yajnavalkya to Manu. Such a right may not be a right to property but it is a right against property and the husband has

a personal obligation to maintain his wife

and if he or the family has property, the female has the legal right to be maintained therefrom. If a charge is created for the

maintenance of a female, the said right becomes a legally enforceable one. At any

rate, even without a charge the claim for maintenance is doubtless a pre-existing right

so that any transfer declaring or recognising such a right does not confer any new title but

merely endorses or confirms the pre-existing rights.

(2) Section 14(1) and the Explanation thereto have been couched in the widest possible terms and must be liberally construed in favour of the females so as to advance the object of the 1956 Act and promote the socio-

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economic ends sought to be achieved by this long needed legislation.

(3) Sub-section (2) of Section 14 is in the

nature of a proviso and has a field of its own

without interfering with the operation of
Section 14(1) materially. The proviso should

not be construed in a manner so as to
destroy the effect of the main provision or the
protection granted by Section 14(1) or in a

way so as to become totally inconsistent with
the main provision.

(4) Sub-section (2) of Section 14 applies to

instruments, decrees, awards, gifts, etc.

which create independent and new titles in
favour of the females for the first time and
has no application where the instrument

concerned merely seeks to confirm, endorse,
declare or recognise pre-existing rights. In

such cases a restricted estate in favour of a
female is legally permissible and Section

14(1) will not operate in this sphere. Where,

however, an instrument merely declares or

recognises a pre-existing right, such as a claim to maintenance or partition or share to which the female is entitled, the sub-section has absolutely no application and the females limited interest would automatically be enlarged into an absolute one by force of Section 14(1) and the restrictions placed, if any, under the document would have to be

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ignored. Thus where a property is allotted or transferred to a female in lieu of maintenance or a share at partition, the

instrument is taken out of the ambit of sub-

section (2) and would be governed by Section 14(1) despite any restrictions placed on the

powers of the transferee.

(5) The use of express terms like property acquired by a female Hindu at a partition, or

in lieu of maintenance, or arrears of maintenance, etc. in the Explanation to

Section 14(1) clearly makes sub-section (2)

inapplicable to these categories which have

been expressly excepted from the operation of sub-section (2).

(6) The words possessed by used by the

Legislature in Section 14(1) are of the widest possible amplitude and include the state of

owning a property even though the owner is not in actual or physical possession of the

same. Thus, where a widow gets a share in the property under a preliminary decree

before or at the time when the 1956 Act had been passed but had not been given actual possession under a final decree, the property would be deemed to be possessed by her and by force of Section 14(1) she would get absolute interest in the property. It is equally well settled that the possession of the widow, however, must be under some

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vestige of a claim, right or title, because the section does not contemplate the possession of any rank trespasser without any right or

title.

(7) That the words restricted estate used in Section 14(2) are wider than limited interest

as indicated in Section 14(1) and they include not only limited interest, but also any other kind of limitation that may be placed on

the transferee.

19. Mr. Vishwanathan put heavy reliance on the decision of this Court in the case of Mst. Karmi vs.

Amru (1972) 4 SCC 86. In our considered opinion,

the ratio decided in that case will not apply in the facts of the present case. In Mst. Karmi case (Supra), one Jaimal, who was the owner of the property, had

executed a Will directing that on his death, his entire estate would devolve upon his widow Nihali during

her life and thereafter, the same would devolve upon his collaterals on the death of Jaimal. The properties

were mutated in the name of Nihali who eventually died in 1960. On her death, the collaterals claimed

the properties on the basis of Will, but the appellant claimed the properties as their sole legatee from Nihali under her Will of 1958. On these facts, it was held that Nihali having succeeded to the properties of Jaimal on the strength of Will cannot claim any right in those properties over and above that was given to her under the Will. The Court observed that the life estate given to her under the Will cannot become an

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absolute estate under the provisions of Hindu Succession Act, 1956.
20. The facts in Karmis case and that of the present

case are fully distinguishable. In the instant case,

the Will was executed in 1920 in which Subba Rao has mentioned that his first wife died, the second

wife got two sons and one daughter. Thereafter, second wife also died. He, then, married to Veeraraghavamma as a third wife, who is alive. The

executant of the Will have also mentioned the description of the properties owned by him. He, very specifically mentioned in the Will that his third wife

Veeeraraghavamma shall enjoy for life one tiled house

situated in the compound wall. For that enjoyment, it

was also mentioned in the Will that the widow Veeraraghavamma shall also be entitled to fetch

water from the well situated in the backyard of a different house. In other words, the executant of the

Will made arrangements for his third wife to maintain her enjoyment in the suit schedule property

till her life. The intention of the executant is therefore clear that he gave the suit schedule property to his

third wife Veeraraghavamma in order to hold and enjoy the suit property for her maintenance during her lifetime. It is not a case like Karmi case that by executing a Will, the executant directed that his entire estate will devolve upon his widow Veeraraghavamma.

21. A three Judges Bench of this Court in the case of R.B. S.S. Munnalal and Others vs. S.S. Rajkumar &

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Others, AIR 1962 SC 1493, while interpreting the provisions of Section 14(1) of the Act observed: (AIR pp. 1499-1500, para 16)

"16. By Section 14(1) the legislature sought

to convert the interest of a Hindu female which under the Sastric Hindu law would

have been regarded as a limited interest into an absolute interest and by the Explanation thereto gave to the expression property the

widest connotation. The expression includes property acquired by a Hindu female by inheritance or devise, or at a partition, or in lieu of maintenance or arrears of

maintenance, or by gift from any person, whether a relative or not, before, at or after her marriage, or by her own skill or exertion,

or by purchase or by prescription, or in any other manner whatsoever. By Section 14(1)

manifestly it is intended to convert the interest which a Hindu female has in

property however restricted the nature of that interest under the Sastric Hindu law may be

into absolute estate. Pratapmull case undoubtedly laid down that till actual division of the share declared in her favour by a preliminary decree for partition of the joint family estate a Hindu wife or mother,

was not recognised as owner, but that rule cannot in our judgment apply after the enactment of the Hindu Succession Act. The

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Act is a codifying enactment, and has made far reaching changes in the structure of the Hindu law of inheritance, and succession.

The Act confers upon Hindu females full

rights of inheritance, and sweeps away the traditional limitations on her powers of

dispositions which were regarded under the Hindu law as inherent in her estate. She is under the Act regarded as a fresh stock of

descent in respect of property possessed by her at the time of her death. It is true that under the Sastric Hindu law, the share given

to a Hindu widow on partition between her

sons or her grandsons was in lieu other right to maintenance. She was not entitled to claim partition. But the Legislature by enacting the

Hindu Womens' Right to Property Act, 1937

made a significant departure in that branch

of the law; the Act gave a Hindu widow the same interest in the property which her

husband had at the time of his death, and if the estate was partitioned she became owner

in severalty of her share, subject of course to the restrictions on disposition and the peculiar rule of extinction of the estate on death actual or civil. It cannot be assumed having regard to this development that in enacting Section 14 of the Hindu Succession Act, the legislature merely intended to declare the rule enunciated by the Privy

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Council in PratapmuIl case. Section 4 of the Act gives an overriding effect to the provisions of the Act.

22. Reference may also be made to a three Judges

Bench decision of this Court in the case of Nirmal Chand vs. Vidya Wanti, (1969) 3 SCC 628. In that

case, by a registered document of partition, the related right was given to the widow – the user of the land with the condition that she will have no right to

alienate in any manner. This Court holding that the case falls under Section 14(1) of the Act held as under: (SCC p. 631, para 6)

r "6. If Subhrai Bai was entitled to a share in

her husband's properties then the suit properties must be held to have been allotted to her in accordance with law. As the law

then stood she had only a life interest in the properties taken by her. Therefore the recital

in the deed in question that she would have only a life interest in the properties allotted to

her share is merely recording the true legal position. Hence it is not possible to conclude

that the properties in question were given to her subject to the condition of her enjoying it for a life time. Therefore the trial court as well as the first appellate court were right in holding that the facts of the case do not fall within Section 14(2) of the Hindu Succession Act, 1956. Consequently Subhrai Bai must be held to have had an absolute right in the

suit properties, in view of Section 14(1) of the Hindu Succession Act.

23. In the case of Thota Sesharathamma vs. Thota

Manikyamma, (1991) 4 SCC 312, life estate was

granted to a Hindu women by a Will as a limited owner and the grant was in recognition of pre-

existing right. Following the ratio decided in Tulasammas case, their Lordships held that the decision in Mst. Karmi cannot be considered as an

authority on the ambit of Section 14(1) and (2) of the Act. The Court held: (Thota Sesharathamma, SCC p. 321, paras 9-10)

r "9. It was clearly held in the above case that

Section 14(2) of the Act is in the nature of a proviso or an exception to Section 14(1) and comes into operation only if acquisition in

any of the methods indicated therein is made for the first time without there being any pre-

existing right in the female Hindu to the property. The Bench consisted of Hon. J.C.

Shah, V. Ramaswamy and A.N. Grover, JJ.

10. The case of Mst Karmi v. Amru on which a reliance has now been placed by learned counsel for the appellant and petitioners was also decided by a bench of three Judges Hon. J.C. Shah, K.S. Hegde and A.N. Grover, JJ. It may be noted that two Honble Judges, namely, J.C. Shah and A.N. Grover were common to both the cases. In Mst Karmi v. Amru, one Jaimal died in 1938 leaving his wife Nihali. His son Ditta predeceased him.

Appellant in the above case was the daughter of Ditta and the respondents were .

collaterals of Jaimal. Jaimal first executed a will dated December 18, 1935 and by a subsequent will dated November 13, 1937 revoked the first will. By the second will a life estate was given to Nihali and thereafter the property was made to devolve on Bhagtu and Amru collaterals. On the death of Jaimal in 1938, properties were mutated in the name of Nihali. Nihali died in 1960/61. The appellant Mst Karmi claimed right on the basis of a will dated April 25, 1958 executed by Nihali in her favour. It was held that the life estate given to a widow under the will of her husband cannot become an absolute estate under the provisions of the Hindu Succession Act. Thereafter, the appellant cannot claim title to the properties on the basis of the will executed by the widow Nihali in her favour. It is a short judgment without adverting to any provisions of Section 14(1) or 14(2) of the Act. The judgment neither makes any mention of any argument raised in this regard nor there is any mention of the earlier decision in Badri Pershad v. Smt Kanso Devi. The decision in Mst Karmi cannot be considered as an authority on the ambit and scope of Section 14(1) and (2) of the Act.

24. Reference may also be made to the decision of .

three Judges Bench of this Court in the case of Shakuntala Devi vs. Kamla and Others, (2005) 5 SCC 390, where a Hindu wife was bequeathed life interest for maintenance by Will with the condition that she would not have power to alienate the same in any manner. As per the Will, after death of the wife, the property was to revert back to his daughter as an absolute owner. On this fact their Lordships following the ratio decided in Tulasammas case (supra) held that by virtue of Section 14(1) a limited right given to the wife under the Will got enlarged to an absolute right in the suit property.

25. Mr. K.Ramamurty, learned senior counsel appearing for the respondent, also relied upon the decision in the case of Santosh and Others vs. Saraswathibai and Another, (2008) 1 SCC 465, Subhan Rao and Others vs. Parvathi Bai and Others, (2010) 10 SCC 235 and Sri Ramakrishna Mutt vs. M. Maheswaran and Others, (2011) 1 SCC 68.

26. In Santoshs case,(2008) 1 SCC 465 this Court followed the decision given in Nazar Singhs case, (1996) 1 SCC 35, and held that the preexisting right of wife was crystallized and her limited interest

became an absolute interest in the property possessed by her in lieu of maintenance.

27. A similar question arose for consideration before this Court in Subhan Rao case, where a portion of suit property was given to the plaintiff's wife for her maintenance subject to restriction that she will not alienate the land which was given to her .

maintenance. The question arose as to whether by virtue of Section 14(1) of the Act she became the owner of the suit property. Considering all the earlier decisions of this Court, their Lordships held that by virtue of Section 14(1) of the Act, the preexisting right in lieu of her right to maintenance transformed into absolute estate.

28. In the case of Nazar Singh and Others vs. Jagjit Kaur and Others, (1996) 1 SCC 35, this Court following the decision in Tulasammas case held as under: (Nazar Singh case, SCC pp. 38-39, para 9) "9. Section 14 and the respective scope and ambit of sub-sections (1) and (2) has been the subject-matter of a number of decisions of this Court, the most important of which is the decision in V. Tulasamma v. Sesha Reddy. The principles enunciated in this decision have been reiterated in a number of decisions later but have never been departed from. According to this decision, sub-section (2) is confined to cases where property is acquired by a female Hindu for the first time as a grant without any pre-existing right under a gift, will, instrument, decree, order or award, the terms of which prescribe a restricted estate in the property. It has also been held that where the property is acquired by a Hindu female in lieu of right of maintenance inter alia, it is in virtue of a pre-existing right and such an acquisition would .

not be within the scope and ambit of sub-section (2) even if the instrument, decree, order or award allotting the property to her prescribes a restricted estate in the property. Applying this principle, it must be held that the suit lands, which were given to Harmel Kaur by Gurdial Singh in lieu of her maintenance, were held by Harmel Kaur as full owner thereof and not as a limited owner notwithstanding the several restrictive covenants accompanying the grant. [Also see the recent decision of this Court in Mangat Mal v. Punni Devi where a right to residence in a house property was held to attract sub-section (1) of Section 14 notwithstanding the fact that the grant expressly conferred only a limited estate upon her.] According to sub-section (1), where any property is given to a female Hindu in lieu of her maintenance before the commencement of the Hindu Succession Act, such property becomes the absolute property of such female Hindu on the commencement of the Act provided the said property was possessed by her. Where, however, the property is given to a female Hindu towards her maintenance after the commencement of the Act, she becomes the absolute owner thereof the moment she is placed in possession of the said property (unless, of .

course, she is already in possession) notwithstanding the limitations and restrictions contained in the instrument, grant or award whereunder the property is given to her. This proposition follows from the words in sub-section (1), which insofar as is relevant read: Any property possessed by a female Hindu after the commencement of this Act shall be held by her as full owner and not as a limited owner. In other words, though the instrument, grant, award or deed creates a limited estate or a restricted estate, as the case may be, it stands transformed into an absolute estate provided such property is given to a female Hindu in lieu of maintenance and is placed in her possession. So far as

the expression possessed is concerned, it too has been the subject-matter of interpretation by several decisions of this Court to which it is not necessary to refer for the purpose of this case."

(emphasis in original)

29. In *Sadhu Singhs case*, (2006) 8 SCC 75, the facts of the case were quite different to that of the present case. In *Sadhu Singhs case*, this Court proceeded on the basis that the widow had no pre-existing right in the property, and therefore, the life estate given to her in the Will cannot get enlarged into absolute estate under Section 14(1) of the Act.

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30. Mr. Vishwanathan, learned senior counsel for the appellants last contention was that in the absence of any pleading and proof from the side of the appellant to substantiate the plea that Veeraraghavamma was occupying the property in lieu of maintenance, Section 14 will not be automatically attracted. We do not find any substance in the submission made by the learned counsel. Indisputably, Exhibit A-2 is a document which very categorically provided that the property in question was given to Veeraraghavamma to enjoy the same till her life. Neither the genuineness of the said Exhibit A-2 was disputed nor it was disputed that Veeraraghavamma was enjoying the property by way of maintenance. In our considered opinion, unless the factum of bequeathing the property in favour of the wife and her continuous possession are disputed, the question of pleading and proof does not arise. In other words, no one disputed the arrangement made in the Will and Veeraraghavamma continued to enjoy the said property in lieu of maintenance. Hence, the ratio decided in *G. Ramas case* (supra) does not apply.

31. Further, indisputably, Mr. P. Venkata Subba Rao, the original owner of the property, realized the fact that his wife Veeraraghavamma was issueless and she has a pre-existing right to be maintained out of his property. He further realized that physically he was weak and may not survive for long period. He therefore, decided to give his properties to his family .

members. For the maintenance of his third wife Veeraraghavamma, he gave the tiled house with site and compound wall with the stipulation that she shall enjoy the property for life in lieu of maintenance. She will also be entitled to fetch water from the well and use other facilities. Admittedly, no one disputed the arrangements made in the Will and Veeraraghavamma continued to enjoy the said property. In view of the admitted position, we have no doubt to hold that by virtue of Section 14(1) of the Act, her limited right became absolute right to the suit property.

32. In the impugned judgment, the High Court has elaborately discussed the facts of the case and the law applicable thereto and came to the conclusion that the trial court committed serious error of law in holding that by virtue of Section 14(2) of the Act, her limited right has not become absolute.

33. Though no specific word has been mentioned in Exhibit A-2 that in lieu of maintenance life interest has been created in favour of Veeraraghavamma, in our opinion in whatever form a limited interest is created in her favour who was having a pre-existing right of maintenance, the same has

become an absolute right by the operation of Section 14(1) of the Hindu Succession Act.

34. After giving our anxious consideration to the matter and the judicial pronouncements of this Court in a series of decisions, we hold that the impugned .

judgment of the High Court is perfectly in accordance with law and needs no interference by this Court." 13 In addition to the aforesaid judgment I may now refer to a Hon'ble three Judges Bench decision of the Hon'ble Supreme Court in C. Masilamani Mudaliar and others Vs. Idol of Shri Swaminathaswami Swaminathaswami Trirukoil and others (1996) 8 SCC 525, wherein it was held that the Hindu Marriage Act, Hindu Adoption and Maintenance Act and Hindu Succession Act etc. have been brought on statute removing the impediments which stood in the way under the Sastric law. It was further held that explanation I to Section 14(1) gives wide amplitude to the acquisition of property in the widest terms. It is merely illustrative and not exhaustive. The only condition precedent is whether Hindu female had a pre-existing right under the personal law or any other law to hold the property or the right to property. Any instrument, document, device etc. under which Hindu female came to possess the property--

moveable or immoveable in recognition of her pre-existing right, though such instrument, document or device is worded with a restrictive estate, which received the colour of pre-existing restrictive estate possession by a Hindu female, the .

operation of sub section (1) of Section 14 read with Explanation I, remove the fetters and the limited right blossoms into an absolute right. It is apt to reproduce the relevant observations, which read thus: "26. It is true that Section 30 of the Act and the relevant provisions of the Act relating to the execution of the wills need to be given full effect and the right to disposition of a Hindu male derives full measure thereunder. But the right to equality removing handicaps and discrimination against a Hindu female by reason of operation of existing law should be in conformity with the right to equality enshrined in the Constitution and the personal law also needs to be in conformity with the Constitutional goal. Harmonious interpretation, therefore, is required to be adopted in giving effect to the relevant provisions consistent with the constitutional animation to remove gender-based discrimination in matters of marriage, succession etc. Cognizant to these constitutional goals, Hindu Marriage Act, Hindu Adoption and Maintenance Act, Hindu Succession Act etc. have been brought on statute removing the impediments which stood in the way under the Sastric law. Explanation I to Section 14 (1) gives wide amplitude to the acquisition of property in the widest terms. It is merely illustrative and not exhaustive. The only condition precedent is whether Hindu female has a pre-existing right under the personal law or any other law to hold the property or .

the right to property. Any instrument, document, device etc. under which Hindu female came to possess the property movable or immovable in recognition of her pre-existing right, though such instrument, document or device is worded with a restrictive estate, which received the colour of pre-existing restrictive estate possession by a Hindu female. the operation of sub-section (1) of Section 14 read with Explanation I, remove the fetters and the limited right blossoms into an absolute right.

27 As held by this Court, if the acquisition of the property attracts sub-section (1) of Section 14, sub-section (2) does not come into play. If the acquisition is for the first time, without any vestige of pre-existing right under the instrument, document or device etc. then sub-section (2) of Section 14 gets attracted. Sub-section (2) being in the nature of an exception, it does not engulf and wipe out the operation of sub-section (1). Sub-section (2) of Section 14 independently operates in its own sphere. The right to disposition of property by a Hindu under Section 30 is required to be understood in this perspective and if any attempt is made to put restriction upon the property possessed by a Hindu female under an instrument, document or device, though executed after the Act had come into force, it must be interpreted in the light of the facts and circumstances in each case and to construe whether Hindu female acquired or possessed the property in recognition of her pre-existing right or she gets the .

rights for the first time under the instrument without any vestige of pre-existing right. If the answer is in the positive, sub-section (1) of Section 14 gets attracted. Thus construed, both subsections (1) and (2) of Section 14 will be given their full play without rendering either as otios or aids as means of avoidance."

14 Thus, what can be considered to be well settled is that the property held by a Hindu female in lieu of pre-existing right of maintenance, after coming into force the Act, would blossom into complete ownership and therefore, she can deal with the same in any manner, she likes, in accordance with law. No hurdles or fetters can be placed on such ownership. Substantial questions of law No. 2 and 3 are answered accordingly.

15 As regards substantial question of law No.1, I really do not find there being any misreading of pleadings, evidence more particularly, when the facts in question are not in dispute and pure question of law arises for consideration in this appeal. Substantial question of law No.1 is answered accordingly.

16 In view of aforesaid discussion, I find no merit in .

this appeal and the same is accordingly dismissed leaving the parties to bear their own costs. Pending application(s), if any, also stands dismissed.

28.5.2019 (Tarlok Singh Chauhan) Judge (pankaj)